



File No.: EXP202409305

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on June 17, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: B.B.B. (hereinafter, the complainant) exercised the right of Opposition against the CITY COUNCIL OF JEREZ DE LOS CABALLEROS (hereinafter, the complained party) without receiving the legally established response to their request. The complainant states that on 05/15/24 they exercised the right of opposition before the CITY COUNCIL OF JEREZ DE LOS CABALLEROS (complained party), due to the publication on the electronic headquarters of two minutes (dated 01/19/24 and 03/21/24) in which their data appears. They assert that more than a month has passed since they submitted their request and have not received a response.

The complainant emphasizes that data protection regulations establish that all requests must be answered, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements are not met.

They provide the registered document to exercise the right and the minutes of the referenced session in the complaint.

SECOND: In accordance with Article 65.4 of the LOPDGDD, on 06/25/2024, the aforementioned complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on September 17, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the complained party a hearing, so that within ten working days they could present the allegations they deemed appropriate, summarizing the following allegations on 10/18/2024:

"The data requested and appearing in the minutes as shown in the complaint submitted by B.B.B. was completely deleted on July 20, 2024, when the original minute was no longer published on the City Council's transparency portal. Once informed by the Data Protection Delegate, the minutes have been republished as an authentic copy, anonymizing the complainant's name through the reference to initials, without including their full ID number, as can be verified by accessing the following link:

<https://jerezdeloscaballeros.sedelectronica.es/transparency/5faab08d-fc3e-48ee-8849-c6d4a9b6eb25>

"

"A response to the data deletion procedure was provided on September 10, despite the fact that the data had been deleted due to rectification of the previous publication, and thus formal communication of the actions taken has been carried out."

FOURTH: Having examined the document submitted by the complained party, it is forwarded to the complainant, so that, within ten working days, they can formulate the allegations they consider appropriate, summarizing the following allegations on 10/27/2024:

"The City Council should have applied the principle of data minimization and the right to deletion and should have removed the name, surname, and ID number from the published minutes. These are direct identifiers that must be removed as part of data minimization. Instead of removing those direct identifiers, the City Council initiates a procedure for anonymization that allows for my reidentification, assigning me a pseudonym that is the opposite of robust, as unauthorized parties can reverse it through deduction or calculation of the original values of the direct identifier from the pseudonyms. Instead of deleting, it anonymizes. Instead of correctly anonymizing, such as with A.A.A. or 416765, it

anonymizes as (...). Or instead of 416755 or OQCPBL, or even ***1433**, it anonymizes as ID (...)
It should be noted that the dataset is reduced to a unique record, so the risk of reidentification is maximum, with a potential HIGH harm, so the risk threshold should be minimal. Instead, reidentification is facilitated through linkage or inversion of the pseudonym, by using the three initials of my name and two surnames: (...)."

I REQUEST: This Agency to accept this document of allegations, prior to the legally established procedures, to be admitted and considering that the City Council has violated Article 21 of GDPR 2016/679, Article 18 of the LOPDGDD and has not deleted my personal data in accordance with the law in the newly published minutes:

- That the processing of the submitted complaint continues as I expressly declare that I do not wish to withdraw it.
- That the submitted complaint be admitted and upheld."

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FIFTH: After examining the document submitted by the claimant, it is transferred to the respondent, so that, within a period of ten working days, they may formulate the allegations they deem appropriate, summarizing, as of 29/11/2024, the following allegations:

"Despite what the claimant states regarding the deficiency in the anonymization of the data in the records, this aspect is fulfilled, with the indications that have been approved in the joint instruction between the mayor's office and the secretariat of this City Council, and this party does not observe that the proposed anonymization could violate the claimant's data protection rights, nor that they could identify the same. However, the initials could be varied to ensure this right of the interested parties and the obligation of the administration."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the claim for the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was transferred to the respondent for analysis, to

respond to this Agency within one month and to prove that they had provided the claimant with the due response.

The result of this transfer did not allow understanding that the claims of the claimant were satisfied. Consequently, on September 17, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the claim submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their claim accepted."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the interested party, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the claimant.

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interested party, and to express its reasons in case it does not attend to such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party falls on the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Object

Article 21 of the GDPR, relating to the right to object, establishes the following:

"1. The interested party shall have the right to object at any time, on grounds relating to their particular situation, to the processing of personal data concerning them which is based on the provisions of Article 6(1)(e) or (f), including profiling based on those provisions. The data controller shall cease processing the personal data unless it demonstrates compelling legitimate grounds for the processing which override the interests, rights, and freedoms of the data subject, or for the establishment, exercise, or defense of legal claims.

2. Where the processing of personal data is for direct marketing purposes, the data subject shall have the right to object at any time to the processing of personal data concerning them, including profiling to the extent that it is related to such marketing.

3. When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes.

4. At the latest at the time of the first communication with the data subject, the right referred to in

paragraphs 1 and 2 shall be explicitly mentioned to the data subject and shall be presented clearly and separately from any other information.

5. In the context of the use of information society services, and notwithstanding the provisions of Directive 2002/58/EC, the data subject may exercise their right to object by automated means using technical specifications.

6. When personal data are processed for scientific or historical research purposes or for statistical purposes in accordance with Article 89(1), the data subject shall have the right, on grounds relating to their particular situation, to object to the processing of personal data concerning them, unless the processing is necessary for the performance of a task carried out for reasons of public interest."

V

Conclusion

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During the processing of this procedure, the entity being complained about has responded to this Agency and to the complainant, proving that it has attended to the request made by the complainant on September 10, 2024, sending the required response to their request.

On October 27, 2024, the complainant submitted a document alleging that the entity being complained about has not deleted their personal data in accordance with the law in the new records.

Upon examining the documentation submitted by the complainant, including new allegations dated November 29, 2024, it is confirmed that the entity being complained about has anonymized the personal data, complying with the instructions approved in the joint instruction between the mayor's office and the secretary of that City Council. This Agency does not observe that the anonymization carried out could violate the data protection rights of the complainant, nor that they could be identified. It should be noted that, in the Seventh Additional Provision of the LOPDGDD, it establishes that: "When it is necessary to publish an administrative act that contains personal data of the affected party, they shall be identified by their name and surname, adding four random numerical digits from the national identity document, foreign identity number, passport, or equivalent document. When the publication refers to a plurality of affected parties, these random digits must be alternated."

The aforementioned rules do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties must issue, even in cases where there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which it is not appropriate to consider the right in question.

Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the complaint that gives rise to this procedure, formulated precisely due to that lack of adequate response to the request for the exercise of rights, the entity being complained about has provided documentation proving the communication sent to the interested party addressing the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has been exceeded.

In this regard, it should be clarified that the response that corresponds to be made cannot be expressed merely as an administrative procedure. Therefore, considering that the purpose of this procedure is to ensure that the guarantees and rights of the affected parties are duly restored, combining the information contained in the file with the regulations referred to in the sections.

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precedents, it is deemed appropriate to formally accept the present complaint due to the response being issued late, without requiring additional actions by the data controller in order to issue a new certification regarding the exercise of the right.

Considering the cited provisions and other generally applicable regulations, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT for formal reasons the complaint filed by B.B.B. against the CITY COUNCIL OF JEREZ DE LOS CABALLEROS. However, it is not appropriate to issue a new certification by the responding party, as the response was issued late, without requiring additional actions by the data controller.

SECOND: TO NOTIFY this resolution to B.B.B. and to the CITY COUNCIL OF JEREZ DE LOS CABALLEROS.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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